

**SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND
COMMERCIAL SERVICES**

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National Forest Service Road (NFSR) 1310 Cut Slope Debris
12048925Q0021

SERVICES AND PRICES

REGION 6 ROAD MAINTENANCE BLANKET PURCHASE AGREEMENT (BPA)

NSFR 1310 Cut Slope Debris
USDA Forest Service
Mount Hood National Forest
Hood River Ranger District
Hood River County, OR

B.1 SCHEDULE OF SERVICES

19. Item No.	19a. Sub-Item No.	20. Schedule of Services	21. Qty	22. Unit	23. Unit Price	24. Amount
BASE ITEMS						
0001: Road Maintenance						
881(1)	0001AA	Mobilization	All	Lump Sum	\$	\$
807(2)	0001AB	Excavator	16	Hour	\$	\$
832(1)a	0001AC	Load, Haul, and Place Material	500	Cubic Yard	\$	\$
834(5)a	0001AD	Clean Ditches and Drainage Structures	6.04	Mile	\$	\$
TOTAL:						
OPTIONAL ITEMS						
1001: Road Maintenance						
832(1)b	1001AA	Load, Haul, and Place Material	1,000	Cubic Yards	\$	\$
834(5)b	1001AB	Clean Ditches and Drainage Structures	4	Mile	\$	\$
TOTAL:						
SUMMARY OF PRICES						
					Base Items:	\$
					Optional Items:	\$
					TOTAL PRICE (All Items):	\$

B.2 SCHEDULE OF ITEMS NOTES

Note #1: All Line-Item Nos. are firm-fixed-price (FFP).

Note #2: You must price all Base Line-Item and Optional Line-Item Nos. to be considered for BPA Call award.

B.3 GOVERNMENT POINTS OF CONTACT

Contractual: Jerry Meeks, 469-920-8490, jerry.meeks@usda.gov

Technical: Garrett Berkey 971-469-3249 garrett.berkey@usda.gov

DESCRIPTION/STATEMENT OF WORK

C.1 STATEMENT OF WORK (SOW)

Road Maintenance:

Introduction: This Blanket Purchase Agreement (BPA) Call is to solicit quotes from qualified vendors of the Mt Hood N.F. and CRGNSA Road Maintenance BPA to perform road maintenance on the Columbia River Gorge National Scenic Area. Only the vendors who submitted bids and were accepted under the Mt. Hood and CRGNSA Road Maintenance BPA shall be considered for this solicitation. Each agreement holder will be given fair opportunity for the BPA Call issued. All terms and conditions found in parent agreement are incorporated by reference and apply to this BPA Call with no exceptions. It is recommended to preview these areas before starting work to see what equipment is needed to access these locations. Contractor to contact COR 30 days before beginning operations on site.

Objectives: To utilize Contractors Equipment and Operators to maintain a disposal site, ditch maintenance, and load, haul, and place material from the cut slope on National Forest Service Road (NFSR) 1310000.

Scope: For all activities, Contractor shall include all labor, materials, equipment, and supplies (including fire and safety equipment) needed to perform work as described, within offers block under its corresponding unit price. Failure to do so will not warrant modification of bid acceptance price.

Base Bid:

807(2) *Excavator* – Disposal site, found at 45.54388, -121.76683, needs preparation before utilization under this contract. Contractor to scatter slash and vegetation into area staked by COR, keeping piles of woody debris under 2' in depth. Contractor to compact non-woody debris as follows: adjust the moisture content of the material to a moisture content suitable for compaction. Fill the interstices around rock with earth or other fine material as practical. Operate hauling and spreading equipment uniformly over the full width of each layer. Disposal area shall be prepared such that material does not have slopes greater than 1H:1V. Site shall be prepared such that an excess of 1,000 cubic yards of debris may be stored at this location.

832(1)a *Load, Haul, and Place Material* – Load, haul, and place debris at mile posts noted below and marked by COR on site to the disposal site less than a half mile away located at 45.54388, -121.76683 Contractor shall remove all debris encroaching roadway with a traveled way of 12' and a 2' wide shoulder. Removal of vegetation and trees up to 20" DBH within debris site is incidental to this pay item. Contractor shall scatter removed vegetation keeping piles of scattered material under 2' in depth. Contractor shall protect asphalt roadway surface and drainage structures underneath debris along roadway. Payment quantity will be the cubic yards transported to the disposal site and verified by the COR. Contractor shall place debris such that it is compacted as follows: Adjust the moisture content of the material to a moisture content suitable for compaction.

Fill the interstices around rock with earth or other fine material as practical. Operate hauling and spreading equipment uniformly over the full width of each layer. Disposal area shall be prepared such that material does not have slopes greater than 1H:1V.

834(5)a *Clean Ditches and Drainage Structures* – Contractor shall lean ditch and recondition drainage structures on NFSR 1310000 at mileposts noted below and marked by COR on site, such that water does not flow onto roadway. Bottom of the ditch shall be minimum 2' below surface of the roadway. Contractor shall retain vegetation not imposing the flow of water along the ditch line. Contractor shall install non-plastic, weed free, erosion control measures such as wattles or coir logs, every 50 linear feet in the disturbed ditch and 5 linear feet before the inlet of each culvert. Purchase of weed free straw wattles and their installation is incidental to this line item. Debris shall be removed from ditch to be placed according to line item 832(1), placement of debris is incidental to pay item 832(1).

881(1) *Mobilization-Equipment Moving* - Measured and paid by lump sum (Measurement 881.05B, Payment 881.06(1)).

Option Item:

832(1)b *Load, Haul, and Place Material* – Option for additional cubic yards of material to be loaded, hauled, and placed as outlined in the Base Bid. Areas of work for this line item referenced in line items 832(1)a, 834(5)a, and 834(5)b. This line item will be awarded in 10 cubic yards per unit.

834(5)b *Clean Ditches and Drainage Structures* – Contractor shall clean ditch on cut slope side of NFSR 1300000 at mileposts noted below and marked by COR on site, such that water does not flow onto roadway. Bottom of the ditch shall be minimum 2' below surface of the roadway. Contractor shall retain vegetation not imposing the flow of water along the ditch line. Contractor shall install non-plastic, weed free, erosion control measures such as wattles or coir logs, every 50 linear feet in the disturbed ditch and 5 linear feet before the inlet of each culvert. Purchase of weed free straw wattles and their installation is incidental to this line item. Debris removed from ditch shall be placed according to line item 832(1), placement of debris is incidental to line item 832(1).

C.2 LOCATION OF WORK

To access Forest Service Road 1310 000, from Hood River ranger station head north on Hwy 35 for .9 miles, turn left onto Woodworth Dr. Travel 1.9 miles to the intersection with OR 281 turn right at the intersection and travel 3.2 miles. Turn left onto Lost Lake Road and travel 4.8 miles. Slight right onto NFSR 1300 000, and travel 3.9 Miles to stay right onto NFSR 1310 000. Travel 1.0 miles to the disposal site location at the intersection of (NFSR 1311. (45.54387, -121.76678) first location for debris removal is located .3 miles further and the second is .3 from there. See accompanying detailed maps.

To access Forest Service Road 1300 000, from Hood River ranger station head north on Hwy 35 for .9 miles, turn left onto Woodworth Dr. Travel 1.9 miles to the intersection

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with OR 281 turn right at the intersection and travel 3.2 miles. Turn left onto Lost Lake Road and travel 4.8 miles. Slight right onto NFSR 1300 000, and travel 3.5 Miles to reach boundary of National Forest Service land. See accompanying detailed maps.

Base Bid:				
Mile Post of 1310000	Item	UOM	Item Qty	Description
1.0	807(2)	Hours	16	Prepare disposal site
1.3	832(1)a	Cubic Yards	250	Remove debris from cut slope
1.6	832(1)a	Cubic Yards	250	Remove debris from cut slope
0.00 to 6.04	834(5)a	Mile	6.04	Clean Ditches and Drainage Structures

Option Items:				
Mile Post of 1310000	Item	UOM	Item Qty	Description
1.3	832(1)b	Cubic Yards	500	Remove debris from cut slope
1.6	832(1)b	Cubic Yards	500	Remove debris from cut slope
Mile Post of 1300000	Item	UOM	Item Qty	Description
3.50 to 7.50	834(5)b	Mile	4	Clean Ditches and Drainage Structures

C.3 DELIVERY TICKETS

(a) All material delivery tickets issued during BPA Call performance shall be provided to the BPA Call CO/COR and include the following information:

Name of Supplier;
BPA Call No.;
Date of Purchase;
Purchase Number;
Itemized List of Supplies Furnished;
Quantity; and
Date of Delivery.

C.4 INVOICES

(a) The only authorized location to submit BPA Call invoices is the U.S. Department of the Treasury's *Invoice Processing Platform (IPP)*. In order to receive payment for completed services your company must be registered in IPP and submit all invoices electronically via this website. This is a mandatory requirement initiated by the U.S. Treasury.

(b) Useful IPP Links:

About IPP: <https://www.ipp.gov/about-ipp/index>
Vendor Registration: <https://www.ipp.gov/vendors/index>
Vendor Assistance: <https://www.ipp.gov/contacts/index>
Invoice Submission: <https://www.ipp.gov/>

C.5 STATEMENT OF WORK/SPECIFICATIONS (AGAR 452.211-72) (FEB 1988)

(a) The Contractor shall furnish the necessary personnel, material, equipment, services and facilities (except as otherwise specified), to perform the Statement of Work / Specifications referenced at Paragraphs C.1 and J.1.

C.6 SIZE STANDARD AND NAICS CODE INFORMATION (AGAR 452.219-70) (SEP 2001)

(a) The North American Industrial Classification System Code(s) and business size standard(s) describing the products and/or services to be acquired under this solicitation are listed below:

Contract line items:	All BPA Call Line Item(s) (<i>excluding 48890 below</i>)
NAICS Code:	115310 – Support Activities for Forestry
Size Standard:	\$11.5 Million
Product Service Code:	Z1LB – Maint. of Highways, Roads, Streets, Bridges, and Railways

MARKING CONTRACTUAL DOCUMENTS

D.1 MARKING OF CORRESPONDENCE

All correspondence, e.g. e-mails, letters, etc., transmitted between the USDA FS staff and contractors, shall be clearly marked with the ***BPA Call No.*** and ***Project Title***. This practice ensures official contract documents are accurately identified for document filing purposes.

INSPECTION AND ACCEPTANCE

E.1 INSPECTION AND ACCEPTANCE

52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services. (NOV 2023)

(a) ***Inspection/Acceptance.*** The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

DELIVERIES OR PERFORMANCE

F.1 CLAUSES INCORPORATED BY REFERENCE (FAR 52.252-2) (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.acquisition.gov/agar>

FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

52.242-17 Government Delay of Work (APR 1984)

F.2 PERIOD OF PERFORMANCE (AGAR 452.211-74) (FEB 1988)

The period of performance of this contract is from July 15, 2025, through September 30, 2025.

(End of clause)

CONTRACT ADMINISTRATION DATA

G.1 DESIGNATION OF CONTRACTING OFFICER'S REPRESENTATIVE (COR)

(a) The COR is responsible for administering the performance of work under awarded BPA Calls. In no event will any understanding, agreement, modification, change order or other matter deviating from the terms of the BPA Calls be effective or binding upon the government unless formalized by proper contractual documents executed by the CO prior to completion of the contract. The CO should be informed as soon as possible of any actions, or inactions, by the Contractor, or the Government, which will change the required delivery or completion times stated in the BPA Calls, and the contract will be modified accordingly. (This does not apply to individual assignments which were issued by the COR provided they do not affect the delivery schedule or the performance period stated in the contract).

(b) On all matters that pertain to the contract terms, the Contractor must communicate with the CO. Whenever, in the opinion of the Contractor, the COR requests efforts outside the scope of the contract, the Contractor should advise the COR. If the COR persists and there still exists a disagreement as to proper contractual coverage, the CO should be notified immediately, preferably in writing, if time permits. Proceeding with work without proper contractual coverage could result in nonpayment.

G.2 APPOINTMENT OF GOVERNMENT TECHNICAL MONITOR (GTM)

(a) If the BPA Call COR requires USDA FS inspection support during BPA Call performance, the COR shall nominate, and the BPA Call CO appoint, a GTM using the GTM Appointment form. The GTM's primary duties and responsibilities include:

- (1) Monitor, evaluate, and communicate to the CO/COR the Contractor's performance in complying with contract requirements in an efficient and timely manner;
- (2) Discuss with the CO/COR possible delays to contract performance;
- (3) Maintain documentation of all inspections performed including that the contractor has met or not met requirements; and
- (4) Promptly notify the CO/COR of any problems associated with labor requirements and employment eligibility of contractor employees.

G.3 POST AWARD CONFERENCE (AGAR 452.215-73) (NOV 1996)

A post award conference (PAC) with the successful quoter is required. It will be scheduled within **fourteen (14) calendar days** after the date of contract award. The conference will be held at: virtually via Microsoft Teams.

G.4 NOTICE TO PROCEED (NTP)

A Notice to Proceed will be issued in writing by the CO or the COR. No work shall begin until receipt of the signed NTP. The BPA Call period of performance shall commence on the day indicated on the NTP.

G.5 WORK ORDERS

(a) The COR is to use the ***Work Order and Notice of Noncompliance (FS-6300-0012 Rev. 01/17)*** form, to confirm oral notices or directions to the contractor that do not involve an adjustment in the contract time or price. The COR cannot make contract changes unless specifically authorized by the CO.

(b) Only the CO/COR is authorized to issue form FS-6300-12. Each Work Order shall be numbered sequentially under each BPA Call for tracking purposes. Identify each Work Order in numeric order, e.g. 01, 02, 03, etc.

(c) Give Form FS-6300-12 directly to the contractor for signature and date to establish receipt. If the contractor refuses to sign the form, document the attempts to deliver it via the ***Contract Daily Diary (FS-6300-0020 Rev. 01/17)*** form, and on the face of form FS-6300-12, and distribute copies to the CO and contractor. Examples of Work Orders and Notices of Noncompliance include:

- (1) Orders requiring compliance with fire control restrictions;
- (2) Rejections of unsatisfactory work or materials not meeting specifications;
- (3) Orders to perform work for which unit prices are available, and where the contract makes provisions for such adjustments;
- (4) Orders to enforce compliance with safety or sanitary provisions that the contract requires; and
- (5) Record of COR approval for the contractor to proceed with new segments or items of work when the specifications require such approval.

SPECIAL CONTRACT REQUIREMENTS

The following special contract requirements are applicable to this ***BPA Call***:

H.1 SAFETY PLAN

The following conditions are identified as inherently hazardous conditions that may be present during BPA Call performance. Failure to take the proper precautions could lead to serious injury or loss of life; ***this list is not all-inclusive***. If requested at the ***BPA Call Level***, the contractor shall provide a written, BPA Call-specific Safety Plan. Appropriate actions shall be taken by the contractor to implement the Safety Plan during performance and to take any and all other necessary steps to mitigate the dangers from hazards such as the following:

- Heavy equipment operation.
- Fire hazards.
- Temporary excavation / deep trenching / slope stability.
- Traffic control on high-volume and/or high-speed and/or limited visibility roads.
- Hydraulic and/or pneumatic and/or other high-pressure hazards.
- Mechanical hazards such as pulleys, springs etc.

H.2 AGAR 452.236-72 USE OF PREMISES (NOV 1996)

(a) Before any camp, quarry, borrow pit, storage, detour, or bypass site, other than shown on the drawings, is opened or operated on USDA land or lands administered by the USDA, the Contractor shall obtain written permission from the Contracting Officer. A camp is interpreted to include a campsite or trailer parking area of any employee working on the project for the Contractor.

(b) National Forest Road Rules applicable to the National Forest are incorporated by reference. Copies are available upon request.

H.3 RIGHTS IN AND USE IN MATERIALS

The Contractor, with the written approval of the CO, may use on the project suitable stone, gravel, and sand, or other material found in the excavation. Payment will be made both for the excavation of such materials at the corresponding contract unit price and for the line items for which the excavated material is used. The Contractor shall replace, without additional compensation, sufficient materials equal to the portion of the work, which was originally contemplated to be constructed with such material.

H.4 CONTROL STAKES

The Contractor is responsible for the preservation of existing benchmarks and other control points. The cost of replacing them may be charged against the Contractor and may be deducted from the payment for the work. If the Contractor finds a missing stake it will notify the Government who will replace the missing stake within two (2) days. Flagging not associated with stakes can be ignored.

H.5 PERSONAL PROTECTIVE EQUIPMENT (PPE)

- (a) The contractor shall train workers in the safe operation and use of equipment that the worker may use before the worker begins using such equipment.
- (b) Personal protective equipment, including personal protective equipment for eyes, face, head, and extremities shall be provided, used, and maintained in a sanitary and reliable condition wherever it is necessary by reason of hazards or processes encountered which may cause injury or impairment in the function of any part of the body. Defective or damaged personal protective equipment shall not be used.
- (c) The contractor shall provide chain saw chaps to each employee who operates a chain saw, at no cost to the employee. These chaps must be approved by an Underwriters Laboratory or meet Forest Service specification 6170-47. The chaps shall cover the full length of the thigh and shall extend to the top of the boot on each leg.
- (d) The contractor shall assure that each employee wears foot protection that provides adequate traction and ankle support. Employees operating chain saws shall wear foot protection that is constructed with cut-resistant material which will protect the employee against contact with a running chain saw.
- (e) In any area where the worker is exposed to the potential for flying or falling objects, the contractor shall provide a hard hat, at no cost to the employee, and the contractor shall assure that the employee wears the hard hat. The hard hat must meet the minimum requirements of American National Standards Institute (ANSI) standard Z89.1-1997.
- (f) The contractor shall provide, at no cost to the employee, eye protection where there is potential for eye injury due to flying objects. This eye protection must meet the minimum requirements of ANSI standard Z87.1-2003.
- (g) The contractor shall provide, at no cost to the employee, hearing protection where there is a potential for hearing loss due to high intensity noise for example, chainsaw operation.

H.6 LOAD LIMITS

All vehicles and equipment **shall not** exceed State legal highway loads and widths or posted limits without a valid State and Forest Service oversized and/or overweight permit(s). The USDA FS permit application for this project may be obtained from the BPA Call COR.

Warning: The lead time required for permit approval is unknown, so BPA Call CORs and vendors shall consider this requirement during BPA Call development, solicitation, and award.

H.7 CONTRACTOR'S USE OF EXISTING ROADS

(a) Unless stated otherwise at the ***BPA Call Level***, the contractor is authorized to use roads in the immediate road maintenance project area for performance of work under the BPA Call. The authorization is limited to roads necessary for direct access between the road maintenance area and storage sites, disposal areas, and other work areas designated in the contract. The roads authorized for use will be subject to the following general conditions:

- (1) State laws governing traffic rules and equipment requirements on State and County Highways.
- (2) Federal Regulations contained in 36 CFR 261.12. These regulations prohibit use in excess of State Codes for weight and size, damaging a road while using it, and blocking a road open to use by others.

The contractor shall be responsible for and perform road maintenance commensurate with its use of Forest Service roads in the maintenance area.

H.8 TRAFFIC CONTROL PLAN

(a) The contractor shall provide, erect and maintain all necessary barricades, suitable and sufficient lights, danger signals, signs, and other traffic control devices, and shall take all necessary precautions for the protection of the work and safety of the public. Roads closed to traffic shall be protected by effective barricades, and obstructions shall be illuminated during the hours of darkness. Suitable warning signs shall be provided to properly control and direct traffic.

(b) The contractor shall erect warning signs in advance to any place on the project where operations may interfere with the use of the road or trail by traffic and at all intermediate points where the new work crosses or coincides with an existing road or trail. All road barricades, warning signs, lights, temporary signals, flagman and pilot car operators and equipment, and other protective devices, except for special devices, shall conform with Part VI of the Manual on Uniform Traffic Control Devices for Streets and Highways, published by the Federal Highway Administrations and applicable safety codes. The contractor shall furnish, erect, maintain, and remove when notified any project identification signs shown on the drawings.

H.9 MOISTURE SENSITIVE SOILS

Contractors are cautioned that the roadway structure is designed so that the completed road will support highway legal loads during a limited use season. Maintenance equipment often subjects the uncompleted roadway structure to loadings it is not designed to support. This is especially critical during periods of excessive moisture and will require careful selection and scheduling to permit efficient operation. Any damage resulting from operations which renders the material unsuitable for use or results in potential siltation of streams will be corrected by the contractor at its expense.

Operations shall be suspended during wet periods when soil moisture is high or after heavy or prolonged rain and during active precipitation. Rainfall guidelines for when to temporarily defer or cease operations are as follows: a. If it rains at least 0.3 inches per 4-hour period. b. When precipitation for the prior 24-hour period (1:00 A.M. – 12:00

A.M.) is 0.6 inches or greater as recorded. Refer to the Log Creek, Oregon RAWS site for current rainfall data (<https://raws.dri.edu/cgi-bin/rawMAIN.pl?orOLOG>).

H.10 AGAR 452.236-73 ARCHAEOLOGICAL OR HISTORIC SITES (FEB 1988)

If a previously unidentified archaeological or historic site(s) is encountered, the Contractor shall discontinue work in the general area of the site(s) and notify the Contracting Officer immediately.

H.11 AGAR 452.236-74 CONTROL OF EROSION, SEDIMENTATION, AND POLLUTION (NOV 1996)

(a) Operations shall be scheduled and conducted to minimize erosion of soils and to prevent silting and muddying of streams, rivers, irrigation systems, and impoundments (lakes, reservoirs, etc.).

(b) Pollutants such as fuels, lubricants, bitumens, raw sewage, and other harmful materials shall not be discharged on the ground; into or nearby rivers, streams, or impoundments; or into natural or man-made channels. Wash water or waste from concrete or aggregate operations shall not be allowed to enter live streams prior to treatment by filtration, settling, or other means sufficient to reduce the sediment content to not more than that of the stream into which it is discharged.

(c) Mechanized equipment shall not be operated in flowing streams without written approval by the Contracting Officer.

H.12 LANDSCAPE PRESERVATION

(a) The Contractor shall give attention to the effect of contract operation upon the landscape, shall take care to maintain natural surroundings undamaged, and shall conduct the work at all times in compliance with the following requirements:

(1) Prevention of the Landscape Defacement. The Contractor shall not remove, deface, injure, or destroy trees, shrubs, lawns, or natural features unless specifically authorized by the Government. Unless otherwise provided in the Special Project Specifications, the Contractor shall confine contract operations to within the areas designated in contract documents. Unless otherwise provided in this contract, the Contractor shall gather rock, which falls outside the roadway, due to contract operations and dispose of it as directed by the Government.

(2) Protection of Streams, Lakes, and Reservoirs. The Contractor shall take sufficient precautions to prevent pollution of streams, lakes, small ponds, and reservoirs with fuels, oils, bitumen's, dust palliatives, silt, or other harmful materials. Mechanical equipment shall not be operated in live streams without written approval of the Government.

H.13 CONTROL OF NOXIOUS WEEDS – CLEANING OF EQUIPMENT

(a) To prevent the introduction and control the spread of seeds of noxious weeds onto and around National Forests, the Contractor shall clean all equipment, except transports, of soil, seeds, vegetative matter, and any other debris that could contain seeds before moving the equipment onto the National Forest. When the Contractor is working in an area that has been identified as a noxious weed infestation area, the Contractor shall clean all equipment of weed seeds prior to moving to another work area.

(b) Prior to transporting equipment on to the National Forest, Contractor shall repair all equipment hydraulic, lubricant, and fuel leaks.

(c) The Contractor may use whatever cleaning methods necessary to ensure compliance with the terms of this clause. The Contractor shall notify the Forest Service, 24 hours prior to moving any equipment on to the National Forest that the equipment has been cleaned and is available for inspection. Notification shall include identifying the location of the equipment's recent operations.

(d) The Contractor shall certify, in writing, compliance with the terms of this clause prior to each start-up of operations. For the purposes of this clause, "equipment" includes all motorized equipment used in road maintenance, except transports. The following equipment is excluded from the requirements of this clause: log trucks; chip vans; pickup trucks & other vehicles used to transport personnel.

H.14 SUBMITTALS

(a) BPA Call submittals may include the following unless otherwise required in the BPA Call solicitation:

- (1) Date and revision dates.
- (2) Project name and BPA Call number.
- (3) Names of contractor, subcontractor, supplier and manufacturer.
- (4) Specifications section number.
- (5) Field dimensions and relation to adjacent structures.
- (6) Applicable standards such as ASTM or Federal Specifications.
- (7) Contractor's stamp, initial or signature, certifying the review of submittal, verification of field measurements and compliance with contract documents.

(b) Provide all submittals within 14 calendar days of contract award unless otherwise required by the BPA Call solicitation.

(c) The following are sample submittals may be required during the performance of this contract. Where this information is specific at the *BPA Call Level* it shall be prepared and provided specifically for that BPA Call project:

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Submittal Title	Referenced by Contract Clause or Specification No.	Time of Government Approval
Safety Plan	Refer to BPA, Paragraph H.1	7 Days*
Traffic Control Plan	Refer to BPA, Paragraph H.8	7 Days*
Fire Plan	Refer to BPA, Attachment 6	7 Days*
Designation of Representative	Request from CO	7 Days*
Erosion Control Plan	As Required by Specifications	7 Days*

PART II—CONTRACT CLAUSES

CONTRACT CLAUSES

Federal Acquisition Circular (FAC) Number: 2025-03
Effective Date: 01/17/2025

I.1 APPLICATION OF CONTRACT CLAUSES AT THE BPA CALL LEVEL

The clauses included in your company's BPA are applicable to this BPA Call. It is your company's responsibility to understand all terms and conditions as it relates to this requirement. If clarification is needed, contact the BPA Call contracting officer (CO).

FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far>

AGAR Clauses: <https://www.acquisition.gov/agar>

FAR and AGAR Deviations to clauses may be viewed at: Policies & Regulations | USDA

52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services (NOV 2023)

52.212-5, Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) [FAR 52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) [FAR 52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) [FAR 52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) [FAR 52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) [FAR 52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).

(6) [FAR 52.233-3](#), Protest After Award (AUG 1996) ([31 U.S.C. 3553](#)).

(7) [FAR 52.233-4](#), Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 ([19 U.S.C. 3805 note](#))).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☐ (1) [FAR 52.203-6](#), Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) ([41 U.S.C. 4704](#) and [10 U.S.C. 4655](#)).
- ☐ (2) [FAR 52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) ([41 U.S.C. 3509](#))).
- ☐ (3) [FAR 52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ☒ (4) [FAR 52.203-17](#), Contractor Employee Whistleblower Rights (NOV 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900\(a\)](#).
- ☒ (5) [FAR 52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).
- ☐ (6) [Reserved].
- ☐ (7) [FAR 52.204-14](#), Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) [FAR 52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☒ (9) [FAR 52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- ☐ (10) [FAR 52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II)
- ☐ (11)(i) [FAR 52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition (Dec 2023) ([Pub. L. 115-390](#), title II)
 - ☐ (ii) Alternate I (Dec 2023) of [FAR 52.204-30](#).
- ☒ (12) [FAR 52.209-6](#), Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (NOV 2021) ([31 U.S.C. 6101 note](#)).
- ☐ (13) [FAR 52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) ([41 U.S.C. 2313](#)). Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).
- ☐ (14) [Reserved].

- ☐ (15) [FAR 52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) ([15 U.S.C. 657a](#)).
- ☐ (16) [FAR 52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) ([15 U.S.C. 657a](#)).
- ☐ (17) [Reserved]
- ☒ (18) (i) [FAR 52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) ([15 U.S.C. 644](#)).
- ☐ (ii) Alternate I (Mar 2020) of [FAR 52.219-6](#).
- ☐ (19) (i) [FAR 52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) ([15 U.S.C. 644](#)).
- ☐ (ii) Alternate I (Mar 2020) of [FAR 52.219-7](#).
- ☐ (20) [FAR 52.219-8](#), Utilization of Small Business Concerns (FEB 2024) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)).
- ☐ (21) (i) [FAR 52.219-9](#), Small Business Subcontracting Plan (SEP 2023) ([15 U.S.C. 637\(d\)\(4\)](#)).
- ☐ (ii) Alternate I (Nov 2016) of [FAR 52.219-9](#).
- ☐ (iii) Alternate II (Nov 2016) of [FAR 52.219-9](#).
- ☐ (iv) Alternate III (Jun 2020) of [FAR 52.219-9](#).
- ☐ (v) Alternate IV (Sep 2023) of [FAR 52.219-9](#).
- ☐ (22) (i) [FAR 52.219-13](#), Notice of Set-Aside of Orders (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
- ☐ (ii) Alternate I (MAR 2020) of [FAR 52.219-13](#).
- ☐ (23) [FAR 52.219-14](#), Limitations on Subcontracting (OCT 2022) ([15 U.S.C. 637s](#)).
- [Contracting Officer check as appropriate.]*
- ☐ By the end of the base term of the contract and then by the end of each subsequent option period; or
- ☐ By the end of the performance period for each order issued under the contract.
- ☐ (24) [FAR 52.219-16](#), Liquidated Damages—Subcontracting Plan (SEP 2021) ([15 U.S.C. 637\(d\)\(4\)\(F\)\(i\)](#)).
- ☐ (25) [FAR 52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) ([15 U.S.C. 657f](#)).
- ☒ (26) (i) [FAR 52.219-28](#), Post Award Small Business Program Rerepresentation (FEB 2024) ([15 U.S.C. 632\(a\)\(2\)](#)).
- ☐ (ii) Alternate I (MAR 2020) of [FAR 52.219-28](#).
- ☐ (27) [FAR 52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) ([15 U.S.C. 637\(m\)](#)).
- ☐ (28) [FAR 52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) ([15 U.S.C. 637\(m\)](#)).

- ☐ (29) [FAR 52.219-32](#), Orders Issued Directly Under Small Business Reserves (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
- ☐ (30) [FAR 52.219-33](#), Nonmanufacturer Rule (SEP 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).
- ☒ (31) [FAR 52.222-3](#), Convict Labor (JUN 2003) (E.O.11755).
- ☐ (32) [FAR 52.222-19](#), Child Labor-Cooperation with Authorities and Remedies (FEB 2024).
- ☐ (33) [FAR 52.222-21](#), Prohibition of Segregated Facilities (APR 2015).
- ☐ (34) (i) [FAR 52.222-26](#), Equal Opportunity (SEP 2016) (E.O.11246).
 - ☐ (ii) Alternate I (FEB 1999) of [FAR 52.222-26](#).
- ☒ (35) (i) [FAR 52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
 - ☐ (ii) Alternate I (JUL 2014) of [FAR 52.222-35](#).
- ☒ (36) (i) [FAR 52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
 - ☐ (ii) Alternate I (Jul 2014) of [FAR 52.222-36](#).
- ☒ (37) [FAR 52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- ☐ (38) [FAR 52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- ☒ (39) (i) [FAR 52.222-50](#), Combating Trafficking in Persons (NOV 2021) ([22 U.S.C. chapter 78](#) and E.O. 13627).
 - ☐ (ii) Alternate I (Mar 2015) of [52.222-50](#) ([22 U.S.C. chapter 78](#) and E.O. 13627).
- ☐ (40) [FAR 52.222-54](#), Employment Eligibility Verification (MAY 2022) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in [FAR 22.1803](#).)
- ☐ (41) (i) [FAR 52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) ([42 U.S.C. 6962\(c\)\(3\)\(A\)\(ii\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items).
 - ☐ (ii) Alternate I (MAY 2008) of [FAR 52.223-9](#) ([42 U.S.C. 6962\(i\)\(2\)\(C\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (43) [FAR 52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☐ (44) [FAR 52.223-20](#), Aerosols (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☐ (45) [FAR 52.223-21](#), Foams (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☐ (47) (i) [FAR 52.224-3](#) Privacy Training (JAN 2017) (5 U.S.C. 552 a).
 - ☐ (ii) Alternate I (Jan 2017) of [FAR 52.224-3](#).
- ☒ (48) (i) [FAR 52.225-1](#), Buy American-Supplies (OCT 2022) ([41 U.S.C. chapter 83](#)).
 - ☐ (ii) Alternate I (Oct 2022) of 52.225-1
- ☒ (49) (i) [FAR 52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301 note](#), [19 U.S.C. 2112 note](#), [19 U.S.C. 3805 note](#), [19 U.S.C. 4001 note](#), 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

- ☐ (ii) Alternate I [Reserved]
- ☐ (iii) Alternate II (DEC 2022) of [FAR 52.225-3](#).
- ☐ (iv) Alternate III (FEB 2024) of [FAR 52.225-3](#).
- ☐ (v) Alternate IV (OCT 2022) of [FAR 52.225-3](#).
- ☐ (50) [FAR 52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).
- ☒ (51) [FAR 52.225-13](#), Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) [FAR 52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) [FAR 52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) ([42 U.S.C. 5150](#)).
- ☐ (54) [FAR 52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) ([42 U.S.C. 5150](#)).
- ☒ (55) [FAR 52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) ([E.O. 13513](#)).
- ☐ (56) [FAR 52.229-12](#), Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) [FAR 52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).
- ☐ (58) [FAR 52.232-30](#), Installment Payments for Commercial Products and Commercial Services (NOV 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).
- ☒ (59) [FAR 52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (OCT2018) ([31 U.S.C. 3332](#)).
- ☐ (60) [FAR 52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) ([31 U.S.C. 3332](#)).
- ☐ (61) [FAR 52.232-36](#), Payment by Third Party (MAY 2014) ([31 U.S.C. 3332](#)).
- ☐ (62) [FAR 52.239-1](#), Privacy or Security Safeguards (AUG 1996) ([5 U.S.C. 552a](#)).
- ☐ (63) [FAR 52.242-5](#), Payments to Small Business Subcontractors (JAN 2017) ([15 U.S.C. 637\(d\)\(13\)](#)).
- ☐ (64) (i) [FAR 52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)).
 - ☐ (ii) Alternate I (Apr 2003) of [FAR 52.247-64](#).
 - ☐ (iii) Alternate II (Nov 2021) of [FAR 52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☒ (1) [FAR 52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).

- ☒ (2) [FAR 52.222-42](#), Statement of Equivalent Rates for Federal Hires (MAY 2014) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ☐ (3) [FAR 52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ☐ (4) [FAR 52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ☐ (5) [FAR 52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).
- ☐ (6) [FAR 52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).
- ☒ (7) [FAR 52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- ☒ (8) [FAR 52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- ☐ (9) [FAR 52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) ([42 U.S.C. 1792](#)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in [FAR 2.101](#), on the date of award of this contract, and does not contain the clause at [FAR 52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in [FAR subpart 4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other

than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

- (i) [FAR 52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) ([41 U.S.C. 3509](#)).
- (ii) [FAR 52.203-17](#), Contractor Employee Whistleblower Rights (NOV 2023) ([41 U.S.C. 4712](#)).
- (iii) [FAR 52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (iv) [FAR 52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (v) [FAR 52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (vi) [FAR 52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii) (A) FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115-390](#), title II).
- (B) Alternate I (DEC 2023) of FAR 52.204-30.
- (viii) [FAR 52.219-8](#), Utilization of Small Business Concerns (FEB 2024) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [FAR 52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.
- (ix) [FAR 52.222-21](#), Prohibition of Segregated Facilities (APR 2015).
- (x) [FAR 52.222-26](#), Equal Opportunity (SEP 2015) (E.O.11246).
- (xi) [FAR 52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- (xii) [FAR 52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
- (xiii) [FAR 52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- (xiv) [FAR 52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [FAR 52.222-40](#).

(xv) [FAR 52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).

(xvi) (A) [FAR 52.222-50](#), Combating Trafficking in Persons (NOV 2021) ([22 U.S.C. chapter 78](#) and E.O 13627).

(B) Alternate I (MAR 2015) of [FAR 52.222-50](#) ([22 U.S.C. chapter 78 and E.O. 13627](#)).

(xvii) [FAR 52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).

(xviii) [FAR 52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).

(xix) [FAR 52.222-54](#), Employment Eligibility Verification (MAY 2022) (E.O. 12989).

(xx) [FAR 52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) [FAR 52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii) (A) [FAR 52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (JAN 2017) of [FAR 52.224-3](#).

(xxiii) [FAR 52.225-26](#), Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [FAR 52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) ([42 U.S.C. 1792](#)). Flow down required in accordance with paragraph (e) of FAR clause [FAR 52.226-6](#).

(xxv) [FAR 52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [FAR 52.232-40](#).

(xxvi) [FAR 52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)). Flow down required in accordance with paragraph (d) of FAR clause [FAR 52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Clauses Incorporated by Reference

FAR 52.204-7	System for Award Management (NOV 2024)
FAR 52.204-13	System for Award Management Maintenance (OCT 2018)
AGAR 452.204-70	Modification for Contract Closeout (DEVIATION JUN 2024)
AGAR 452.236-73	Archaeological or Historic Sites (FEB 1988)
AGAR 452.236-74	Control of Erosion, Sedimentation, and Pollution (NOV 1996)

PART III-LIST OF DOCUMENTS, EXHIBITS, OTHER ATTACHMENTS
LIST OF ATTACHMENTS

J.1 LIST OF ATTACHMENTS

***Please see Parent BPA for the entire list of attachments.**

Attachment No.	Attachment Description	Total Pages
1	Vicinity and Forest Location Maps	3
2	Project Area Photos	3
3	Wage Determination	11

PART IV-REPRESENTATIONS AND INSTRUCTIONS

K. REPS AND CERTS

52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services (MAY 2024) (DEVIATION FEB 2025)

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM

INSTRUCTIONS, CONDITIONS, AND NOTICES TO QUOTERS

L.1 BPA CALL EVALUATION FACTOR(S) FOR AWARD

The Government intends to award a Firm-Fixed Price contract to the offeror whose quote represents the best value to the government, based on price. Technical capability and past performance were collected during the initial BPA evaluation award and will not be requested again.

Factor #1 – Price

- SF-1449 complete
- Acknowledge issued amendments, if any; and
- Schedule of Items.

Note #1: “Acknowledge issued amendments” by signing/dating page 1 of each Amendment and submitting only page 1 with your quote package.

Evaluation Approach: In accordance with FAR 13.106-3 Award and documentation, proposed prices will be evaluated to determine if they are fair and reasonable.

Factor #2 – Project Schedule

- As required by Section F, Paragraph F.2, submit a BPA Call schedule that outlines the primary work activities and clearly presents when the project will be completed.

L2. 52.212-1 INSTRUCTIONS TO OFFERORS – COMMERICAL SERVICES (NOV 2021)

For simplified acquisitions, the word quote or quoter is substituted in provision FAR 52.212-1 for the word offer or offeror.

Addenda to Provision FAR 52.212-1 paragraph (b) Submission of Offers:

1) Offerors must have an active entity registration in the System for Award Management to submit an offer. <https://www.sam.gov/SAM/>

2) Technical capability and past performance will not be considered based on the assessments conducted during the initial BPA evaluation. The evaluations from the initial BPA process will be utilized to inform the current assessment, ensuring consistency and leveraging previously gathered data. Offerors are not required to resubmit information unless there have been significant changes or updates since the initial evaluation.

3) This approach ensures that the initial evaluations are effectively utilized, reducing redundancy and maintaining a streamlined process. It also aligns with FAR 15.305(a)(2)

and FAR 15.305(a)(3), which emphasize the importance of considering past performance and technical capability in a consistent and comprehensive manner.

4) In accordance with FAR 15.306(a)(2), the Contracting Officer (CO) may request clarifications from offerors if necessary. Clarifications are limited exchanges between the Government and offerors that may occur when award without discussions is contemplated. These exchanges are intended to enhance the Government's understanding of the quotes, allow reasonable interpretation of the quotes, or facilitate the Government's evaluation process. Offerors are encouraged to promptly respond to any requests for clarification to ensure a thorough and accurate evaluation.

5) Offers submitted in response to this solicitation shall encompass a comprehensive price quotation along with any relevant information the vendor deems pertinent to the solicitation.

b) Price Quotation – Include the following: 1) A signed copy of the 1449, 2) acknowledgement of any amendments to this solicitation by following the instructions that accompany the amendment(s), if applicable, and 3) the completed Schedule of Items contained in Section B of this solicitation.

(End of provision)

Addenda to Provision 52.212-1, paragraph (f) Late submissions:

Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition.

(End of provision)

EVALUATION FACTORS FOR AWARD

M.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) Provisions:

<https://www.acquisition.gov/browse/index/far> (FAR Provisions begin with 52)

Department of Agriculture Acquisition Regulation (AGAR) Provisions:

<https://www.acquisition.gov/agar> (AGAR Provisions begin with 452) FAR and AGAR

Deviations to provisions may be viewed at: [Policies & Regulations | USDA](#)

FAR 52.217-5 Evaluation of Options (JUL 1990)

52.212-2 EVALUATION—COMMERICAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

The government intends to evaluate quote packages and make award without discussions; however, during the evaluation period the Government may determine that it is necessary to conduct discussions. In that case, the CO will establish a competitive range and conduct discussions with the companies in that range. Award of a BPA Call will be made to the quoters whose quote provide the best value to the Government according to the evaluation factor(s) for award.

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

Evaluation Factor 1 – Project Schedule

Evaluation Factor 2 - Price Quote

Quoters shall submit all attachments with complete information which clearly and concisely relates to the evaluation criteria, specifically addressing the following:

I. The non-price Quote shall:

A. Evaluation Factor 1 – Project Schedule

Project schedule will be considered based on a schedule that outlines the primary work activities and clearly presents when the project will be completed.

II. Evaluation Factor 2 – Price Quote

Price quotations must generally adhere to the pricing structure established in the Price Schedule of the solicitation. Quoters are required to quote on all items. The prices offered will be compared to market prices and historical purchases. Each quoter's price quote must be based on the quoter's own technical quote. The unit prices shall be fully loaded and shall include costs for labor, overhead, G&A, and fringe benefits and profit, etc. if applicable.

Technical capability and past performance were collected during the initial BPA evaluation award and will not be requested again.

Project schedule is Equal to price, in accordance with FAR 15.304, the relative importance of all other evaluation factors, when compared to price.

A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

AWARD BASIS

A. The Government intends to issue a Firm Fixed Price contract based on the quotation that provides the best overall value. While price is a significant factor, project schedule will be weighed in the decision making process.

B. The price that will be considered for the purpose of determining the best value quote to the Government will be calculated by determining the cumulative sum price for all CLINs appearing on the pricing schedule.

(End of Provision)

M.2 GENERAL EVALUATION APPROACH

The government intends to evaluate quote packages and make award without discussions; however, during the evaluation period the Government may determine that it is necessary to conduct discussions. In that case, the CO will establish a competitive range and conduct discussions with the companies in that range. Award of a BPA Call will be made to the quoters whose quote provide the best value to the Government according to the evaluation factor(s) for award.

M.3 DOCUMENTS TO SUBMIT

Page 1: SF-1449

Page 3: Schedule of Items

M.4 LOCATION TO SUBMIT QUOTATION PACKAGE

Submit offer by email to Ms. Erika Scofield at Erika.Scofield@usda.gov so that it is delivered into this inbox by the due date and time. Be aware that large attachments may increase the time required to deliver an email. It is the offerors responsibility to confirm receipt of the offer from Ms. Erika Scofield.

Address questions about this solicitation to Erika Scofield at Erika.Scofield@usda.gov.

A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Vicinity and Forest Location Maps

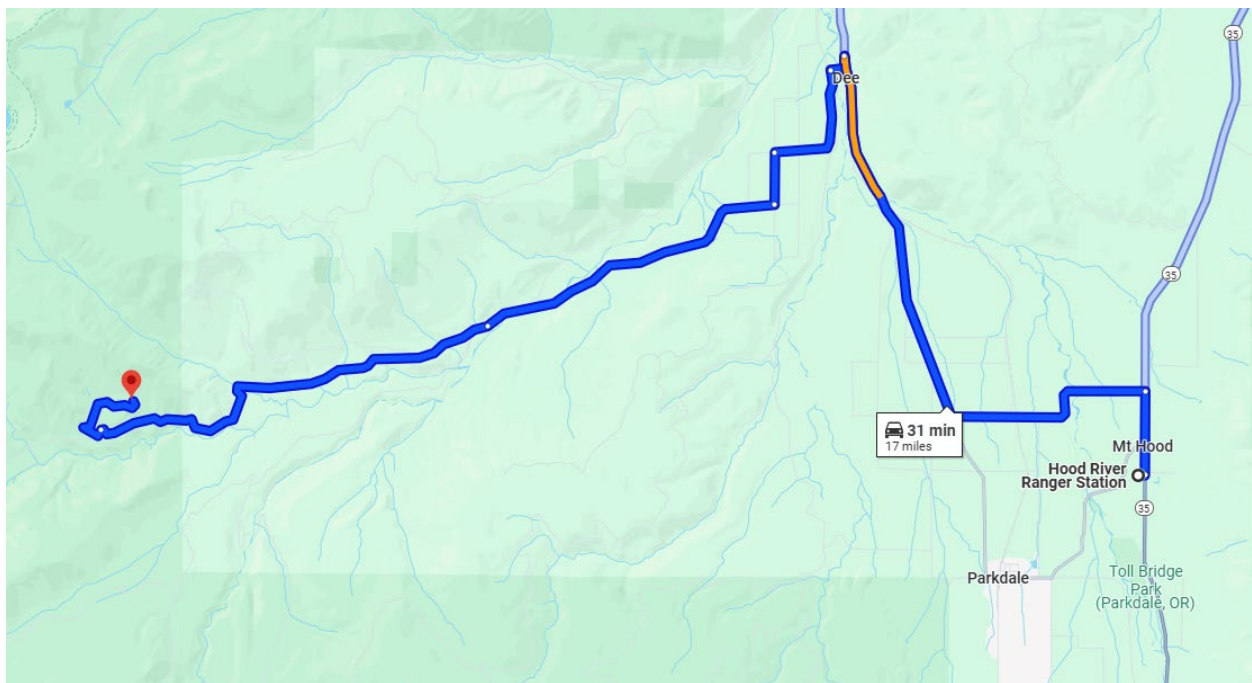


Fig. 1: Map from Hood River Ranger Station to road 1310000 MP 1.0

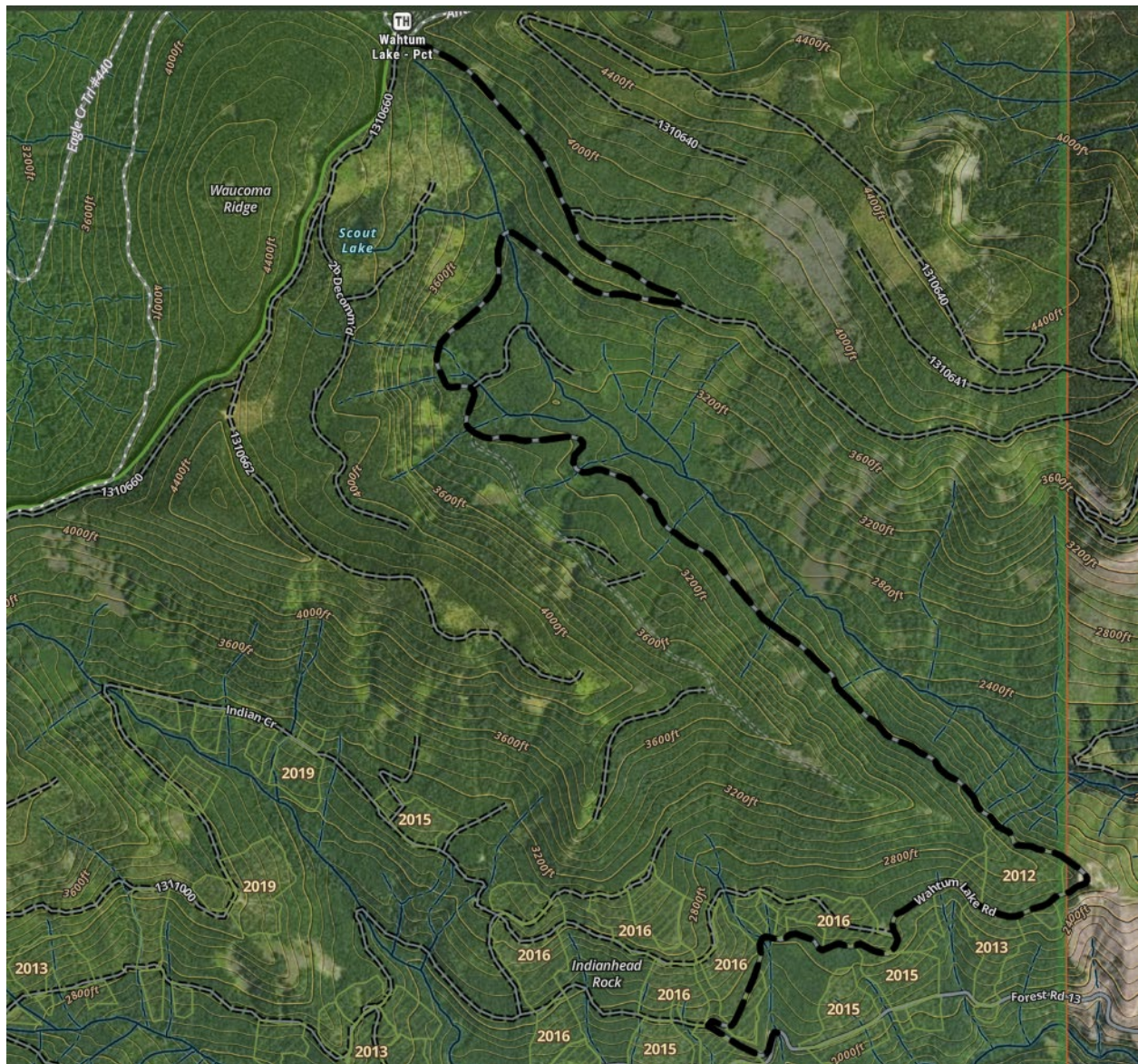


Fig. 2: Map detail of NFSR 1310000 (black dashed line)

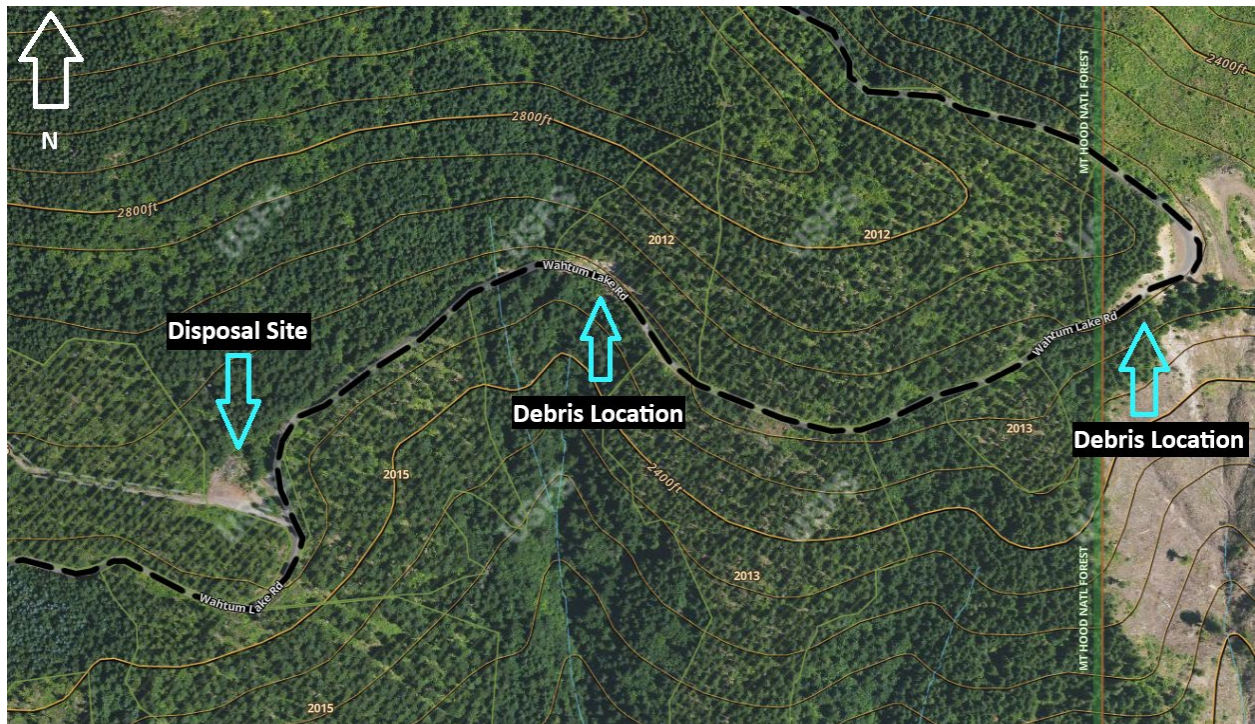


Fig. 3: Detail of disposal site location and debris locations on road 1310000



Fig. 7: Map detail of NFSR 1300000 (solid red line)

Photos of Project Area



Fig. 4: Disposal Site



Fig. 5: Debris on 1310000 at MP 1.3



Fig. 6: Debris on 1310000 at MP 1.6

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5583 Revision No.: 26 Date Of Last Revision: 12/23/2024

Note: Contracts subject to the Service Contract Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022:	Executive Order 14026 generally applies to the contract. The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022:	Executive Order 13658 generally applies to the contract. The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under the Executive Orders is available at www.dol.gov/whd/govcontracts.

State: Oregon

Area: Oregon Counties of Hood River, Sherman, Wasco

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.45***
01012 - Accounting Clerk II		19.58
01013 - Accounting Clerk III		21.90
01020 - Administrative Assistant		29.83
01035 - Court Reporter		20.75
01041 - Customer Service Representative I		15.29***
01042 - Customer Service Representative II		16.68***
01043 - Customer Service Representative III		18.72
01051 - Data Entry Operator I		14.64***
01052 - Data Entry Operator II		15.97***
01060 - Dispatcher, Motor Vehicle		20.87
01070 - Document Preparation Clerk		15.97***
01090 - Duplicating Machine Operator		15.97***
01111 - General Clerk I		16.49***
01112 - General Clerk II		18.00
01113 - General Clerk III		20.20

01120 - Housing Referral Assistant	22.46
01141 - Messenger Courier	16.62***
01191 - Order Clerk I	17.17***
01192 - Order Clerk II	18.74
01261 - Personnel Assistant (Employment) I	18.61
01262 - Personnel Assistant (Employment) II	20.97
01263 - Personnel Assistant (Employment) III	23.21
01270 - Production Control Clerk	24.12
01290 - Rental Clerk	18.26
01300 - Scheduler, Maintenance	18.02
01311 - Secretary I	18.02
01312 - Secretary II	20.15
01313 - Secretary III	22.46
01320 - Service Order Dispatcher	18.66
01410 - Supply Technician	29.83
01420 - Survey Worker	19.88
01460 - Switchboard Operator/Receptionist	17.39***
01531 - Travel Clerk I	16.42***
01532 - Travel Clerk II	17.23***
01533 - Travel Clerk III	19.89
01611 - Word Processor I	15.97***
01612 - Word Processor II	17.94
01613 - Word Processor III	20.75
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	22.51
05010 - Automotive Electrician	21.07
05040 - Automotive Glass Installer	19.82
05070 - Automotive Worker	19.82
05110 - Mobile Equipment Servicer	17.30***
05130 - Motor Equipment Metal Mechanic	22.32
05160 - Motor Equipment Metal Worker	19.82
05190 - Motor Vehicle Mechanic	22.32
05220 - Motor Vehicle Mechanic Helper	16.05***
05250 - Motor Vehicle Upholstery Worker	18.56
05280 - Motor Vehicle Wrecker	19.82
05310 - Painter, Automotive	21.07
05340 - Radiator Repair Specialist	19.82
05370 - Tire Repairer	17.33***
05400 - Transmission Repair Specialist	22.32
07000 - Food Preparation And Service Occupations	
07010 - Baker	16.04***
07041 - Cook I	17.75
07042 - Cook II	20.34
07070 - Dishwasher	14.92***
07130 - Food Service Worker	15.95***
07210 - Meat Cutter	19.66
07260 - Waiter/Waitress	14.00***
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	22.04
09040 - Furniture Handler	14.31***
09080 - Furniture Refinisher	22.04
09090 - Furniture Refinisher Helper	16.76***
09110 - Furniture Repairer, Minor	19.38
09130 - Upholsterer	22.04
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	16.19***
11060 - Elevator Operator	17.13***
11090 - Gardener	22.06
11122 - Housekeeping Aide	17.13***
11150 - Janitor	17.13***
11210 - Laborer, Grounds Maintenance	17.47***
11240 - Maid or Houseman	15.91***
11260 - Pruner	16.18***
11270 - Tractor Operator	20.47
11330 - Trail Maintenance Worker	17.47***

11360 - Window Cleaner	18.50
12000 - Health Occupations	
12010 - Ambulance Driver	23.03
12011 - Breath Alcohol Technician	28.75
12012 - Certified Occupational Therapist Assistant	39.45
12015 - Certified Physical Therapist Assistant	39.45
12020 - Dental Assistant	24.31
12025 - Dental Hygienist	44.68
12030 - EKG Technician	43.57
12035 - Electroneurodiagnostic Technologist	43.57
12040 - Emergency Medical Technician	23.03
12071 - Licensed Practical Nurse I	25.70
12072 - Licensed Practical Nurse II	28.75
12073 - Licensed Practical Nurse III	32.06
12100 - Medical Assistant	22.12
12130 - Medical Laboratory Technician	37.68
12160 - Medical Record Clerk	24.95
12190 - Medical Record Technician	27.90
12195 - Medical Transcriptionist	24.63
12210 - Nuclear Medicine Technologist	63.18
12221 - Nursing Assistant I	15.26***
12222 - Nursing Assistant II	17.17***
12223 - Nursing Assistant III	18.74
12224 - Nursing Assistant IV	21.03
12235 - Optical Dispenser	21.19
12236 - Optical Technician	25.70
12250 - Pharmacy Technician	22.78
12280 - Phlebotomist	20.22
12305 - Radiologic Technologist	41.87
12311 - Registered Nurse I	29.04
12312 - Registered Nurse II	35.53
12313 - Registered Nurse II, Specialist	35.53
12314 - Registered Nurse III	42.99
12315 - Registered Nurse III, Anesthetist	42.99
12316 - Registered Nurse IV	51.52
12317 - Scheduler (Drug and Alcohol Testing)	35.62
12320 - Substance Abuse Treatment Counselor	27.37
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.10
13012 - Exhibits Specialist II	26.16
13013 - Exhibits Specialist III	31.53
13041 - Illustrator I	20.19
13042 - Illustrator II	25.01
13043 - Illustrator III	30.59
13047 - Librarian	28.75
13050 - Library Aide/Clerk	15.00***
13054 - Library Information Technology Systems Administrator	25.96
13058 - Library Technician	19.58
13061 - Media Specialist I	18.74
13062 - Media Specialist II	20.97
13063 - Media Specialist III	23.36
13071 - Photographer I	17.59***
13072 - Photographer II	19.68
13073 - Photographer III	24.38
13074 - Photographer IV	29.82
13075 - Photographer V	36.08
13090 - Technical Order Library Clerk	18.83
13110 - Video Teleconference Technician	18.87
14000 - Information Technology Occupations	
14041 - Computer Operator I	22.04
14042 - Computer Operator II	24.65
14043 - Computer Operator III	27.49
14044 - Computer Operator IV	30.54
14045 - Computer Operator V	33.82

14071 - Computer Programmer I	(see 1)	20.15
14072 - Computer Programmer II	(see 1)	24.95
14073 - Computer Programmer III	(see 1)	
14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		22.04
14160 - Personal Computer Support Technician		30.54
14170 - System Support Specialist		33.82
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		31.92
15020 - Aircrew Training Devices Instructor (Rated)		38.61
15030 - Air Crew Training Devices Instructor (Pilot)		46.28
15050 - Computer Based Training Specialist / Instructor		31.92
15060 - Educational Technologist		31.92
15070 - Flight Instructor (Pilot)		46.28
15080 - Graphic Artist		26.48
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		46.28
15086 - Maintenance Test Pilot, Rotary Wing		46.28
15088 - Non-Maintenance Test/Co-Pilot		46.28
15090 - Technical Instructor		25.06
15095 - Technical Instructor/Course Developer		30.66
15110 - Test Proctor		21.53
15120 - Tutor		21.53
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		18.60
16030 - Counter Attendant		18.60
16040 - Dry Cleaner		21.25
16070 - Finisher, Flatwork, Machine		18.60
16090 - Presser, Hand		18.60
16110 - Presser, Machine, Drycleaning		18.60
16130 - Presser, Machine, Shirts		18.60
16160 - Presser, Machine, Wearing Apparel, Laundry		18.60
16190 - Sewing Machine Operator		22.15
16220 - Tailor		23.03
16250 - Washer, Machine		19.48
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		30.66
19040 - Tool And Die Maker		37.75
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		21.31
21030 - Material Coordinator		24.12
21040 - Material Expediter		24.12
21050 - Material Handling Laborer		17.48***
21071 - Order Filler		17.63***
21080 - Production Line Worker (Food Processing)		21.31
21110 - Shipping Packer		20.28
21130 - Shipping/Receiving Clerk		20.28
21140 - Store Worker I		16.66***
21150 - Stock Clerk		20.66
21210 - Tools And Parts Attendant		21.31
21410 - Warehouse Specialist		21.31
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder		38.21
23019 - Aircraft Logs and Records Technician		30.18
23021 - Aircraft Mechanic I		36.30
23022 - Aircraft Mechanic II		38.21
23023 - Aircraft Mechanic III		40.26
23040 - Aircraft Mechanic Helper		26.11
23050 - Aircraft, Painter		34.26
23060 - Aircraft Servicer		30.18
23070 - Aircraft Survival Flight Equipment Technician		34.26
23080 - Aircraft Worker		32.24
23091 - Aircrew Life Support Equipment (ALSE) Mechanic		32.24

I	
23092 - Aircrew Life Support Equipment (ALSE) Mechanic	36.30
II	
23110 - Appliance Mechanic	30.66
23120 - Bicycle Repairer	25.15
23125 - Cable Splicer	57.57
23130 - Carpenter, Maintenance	24.54
23140 - Carpet Layer	28.85
23160 - Electrician, Maintenance	39.97
23181 - Electronics Technician Maintenance I	37.15
23182 - Electronics Technician Maintenance II	39.48
23183 - Electronics Technician Maintenance III	41.83
23260 - Fabric Worker	27.01
23290 - Fire Alarm System Mechanic	32.49
23310 - Fire Extinguisher Repairer	25.15
23311 - Fuel Distribution System Mechanic	32.29
23312 - Fuel Distribution System Operator	25.02
23370 - General Maintenance Worker	22.40
23380 - Ground Support Equipment Mechanic	36.30
23381 - Ground Support Equipment Servicer	30.18
23382 - Ground Support Equipment Worker	32.24
23391 - Gunsmith I	25.15
23392 - Gunsmith II	28.85
23393 - Gunsmith III	32.49
23410 - Heating, Ventilation And Air-Conditioning Mechanic	28.34
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	29.18
23430 - Heavy Equipment Mechanic	30.42
23440 - Heavy Equipment Operator	29.46
23460 - Instrument Mechanic	32.49
23465 - Laboratory/Shelter Mechanic	30.66
23470 - Laborer	17.48***
23510 - Locksmith	30.66
23530 - Machinery Maintenance Mechanic	28.87
23550 - Machinist, Maintenance	29.20
23580 - Maintenance Trades Helper	17.34***
23591 - Metrology Technician I	32.49
23592 - Metrology Technician II	34.20
23593 - Metrology Technician III	36.04
23640 - Millwright	32.49
23710 - Office Appliance Repairer	30.66
23760 - Painter, Maintenance	22.53
23790 - Pipefitter, Maintenance	37.44
23810 - Plumber, Maintenance	35.46
23820 - Pneudraulic Systems Mechanic	32.49
23850 - Rigger	32.49
23870 - Scale Mechanic	28.85
23890 - Sheet-Metal Worker, Maintenance	32.29
23910 - Small Engine Mechanic	28.85
23931 - Telecommunications Mechanic I	29.43
23932 - Telecommunications Mechanic II	30.98
23950 - Telephone Lineman	29.16
23960 - Welder, Combination, Maintenance	23.44
23965 - Well Driller	32.49
23970 - Woodcraft Worker	32.49
23980 - Woodworker	25.15
24000 - Personal Needs Occupations	
24550 - Case Manager	21.63
24570 - Child Care Attendant	15.76***
24580 - Child Care Center Clerk	19.66
24610 - Chore Aide	16.81***
24620 - Family Readiness And Support Services Coordinator	21.63
24630 - Homemaker	21.63

25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	28.48
25040 - Sewage Plant Operator	26.24
25070 - Stationary Engineer	28.48
25190 - Ventilation Equipment Tender	20.42
25210 - Water Treatment Plant Operator	26.24
27000 - Protective Service Occupations	
27004 - Alarm Monitor	26.64
27007 - Baggage Inspector	18.05
27008 - Corrections Officer	30.34
27010 - Court Security Officer	31.92
27030 - Detection Dog Handler	20.41
27040 - Detention Officer	30.34
27070 - Firefighter	32.71
27101 - Guard I	18.05
27102 - Guard II	20.41
27131 - Police Officer I	30.73
27132 - Police Officer II	34.17
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	17.78
28042 - Carnival Equipment Repairer	19.16
28043 - Carnival Worker	14.05***
28210 - Gate Attendant/Gate Tender	21.23
28310 - Lifeguard	15.31***
28350 - Park Attendant (Aide)	23.75
28510 - Recreation Aide/Health Facility Attendant	17.34***
28515 - Recreation Specialist	29.43
28630 - Sports Official	18.92
28690 - Swimming Pool Operator	21.96
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	28.85
29020 - Hatch Tender	28.85
29030 - Line Handler	28.85
29041 - Stevedore I	27.01
29042 - Stevedore II	30.66
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	45.21
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.17
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.34
30021 - Archeological Technician I	17.88
30022 - Archeological Technician II	19.99
30023 - Archeological Technician III	24.77
30030 - Cartographic Technician	24.77
30040 - Civil Engineering Technician	33.09
30051 - Cryogenic Technician I	27.43
30052 - Cryogenic Technician II	30.30
30061 - Drafter/CAD Operator I	17.88
30062 - Drafter/CAD Operator II	19.99
30063 - Drafter/CAD Operator III	22.28
30064 - Drafter/CAD Operator IV	27.43
30081 - Engineering Technician I	16.14***
30082 - Engineering Technician II	18.13
30083 - Engineering Technician III	20.29
30084 - Engineering Technician IV	25.76
30085 - Engineering Technician V	31.76
30086 - Engineering Technician VI	37.19
30090 - Environmental Technician	24.77
30095 - Evidence Control Specialist	24.77
30210 - Laboratory Technician	22.28
30221 - Latent Fingerprint Technician I	27.43
30222 - Latent Fingerprint Technician II	30.30
30240 - Mathematical Technician	24.77
30361 - Paralegal/Legal Assistant I	19.76
30362 - Paralegal/Legal Assistant II	24.49
30363 - Paralegal/Legal Assistant III	29.96

30364 - Paralegal/Legal Assistant IV	36.24
30375 - Petroleum Supply Specialist	30.30
30390 - Photo-Optics Technician	24.77
30395 - Radiation Control Technician	30.30
30461 - Technical Writer I	24.77
30462 - Technical Writer II	30.30
30463 - Technical Writer III	36.66
30491 - Unexploded Ordnance (UXO) Technician I	28.73
30492 - Unexploded Ordnance (UXO) Technician II	34.76
30493 - Unexploded Ordnance (UXO) Technician III	41.67
30494 - Unexploded (UXO) Safety Escort	28.73
30495 - Unexploded (UXO) Sweep Personnel	28.73
30501 - Weather Forecaster I	27.43
30502 - Weather Forecaster II	33.37
30620 - Weather Observer, Combined Upper Air Or	(see 2) 22.28
Surface Programs	
30621 - Weather Observer, Senior	(see 2) 24.77
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	34.76
31020 - Bus Aide	15.97***
31030 - Bus Driver	21.87
31043 - Driver Courier	18.95
31260 - Parking and Lot Attendant	14.53***
31290 - Shuttle Bus Driver	17.83
31310 - Taxi Driver	14.72***
31361 - Truckdriver, Light	20.43
31362 - Truckdriver, Medium	21.95
31363 - Truckdriver, Heavy	25.64
31364 - Truckdriver, Tractor-Trailer	25.64
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	16.95***
99030 - Cashier	14.79***
99050 - Desk Clerk	15.94***
99095 - Embalmer	28.73
99130 - Flight Follower	28.73
99251 - Laboratory Animal Caretaker I	17.30***
99252 - Laboratory Animal Caretaker II	18.65
99260 - Marketing Analyst	29.75
99310 - Mortician	28.73
99410 - Pest Controller	25.98
99510 - Photofinishing Worker	15.10***
99710 - Recycling Laborer	29.61
99711 - Recycling Specialist	34.70
99730 - Refuse Collector	27.42
99810 - Sales Clerk	17.00***
99820 - School Crossing Guard	17.76
99830 - Survey Party Chief	30.04
99831 - Surveying Aide	17.71***
99832 - Surveying Technician	24.26
99840 - Vending Machine Attendant	22.48
99841 - Vending Machine Repairer	27.76
99842 - Vending Machine Repairer Helper	22.48

***Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 (\$17.75 per hour) or 13658 (\$13.30 per hour). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 and 13658 are not currently being enforced as to contracts or contract-like instruments entered into with the federal government in connection with seasonal recreational services or seasonal recreational equipment rental for the general public on federal lands. The minimum wage requirements of Executive Order 14026 also are not currently being

enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.36 per hour, up to 40 hours per week, or \$214.40 per week or \$929.07 per month

HEALTH & WELFARE EO 13706: \$4.93 per hour, up to 40 hours per week, or \$197.20 per week, or \$854.53 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am.

If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to

this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."